

Marc Moszkowski
Le Verdos
Chemin du Verdos
83300, Châteaudouble, France
Tél: 04 89 53 23 44
mmm@deepgulf.net

Madame, Monsieur le Procureur de la
République
Tribunal judiciaire de Draguignan
11 Rue Pierre Clément BP 273
83007 DRAGUIGNAN CEDEX
Tél: 0494605700

Châteaudouble, March 15, 2023

SUBJECT: Criminal complaint against David RUMSEY and Rustin HOWARD

Madame, Monsieur le Procureur de la République,

I have the honor to inform you of the following facts regarding the fraudulent deeds perpetrated against me by Messrs. David RUMSEY¹ and Rustin HOWARD², both citizens and residents of the United States of America:

1. In June 2013, my employer, Mr. HOWARD, prepared with his friend and close associate Mr. RUMSEY, who was unknown to me, a loan project in the amount of €38,750 (\$50,000), at the usurious and illegal rate of 17% , which Mr.

¹ **RUMSEY David**, attorney, domiciled at 1080 Pittsford Victor Road, Suite 100, Pittsford, New York 14534

² **HOWARD Rustin**, Chairman of the Board, DeepGulf, Inc., domiciled at 431 East Zaragoza St., Unit B, Pensacola, Florida 32502

HOWARD intended to fraudulently substitute for the salaries that his company owed me irrefutably according to the terms of my employment, of my activities within the company, which generated all of the revenue thereof, of his legal obligations, and of the firm commitment he had made to the U.S. government;

2. The loan project was never signed in writing, did not bear the compulsory handwritten legal notices, and Mr. RUMSEY never paid me any amount of money, neither to me nor to any member of my family, nor ever communicated with me;
3. However, in April 2018 Mr. RUMSEY summoned me in summary proceedings before the court of Draguignan, in France, for the repayment of the amount he claimed to have lent me in June 2013, whereas Mr. RUMSEY had never communicated with me about the establishment of this alleged loan or about any other subject, and never paid any amount to me or to any member of my family. I was represented by a lawyer and **Mr. RUMSEY's complaint was quickly dismissed**;
4. In October 2018, Mr. RUMSEY obtained from the same court a judicial lien on my real estate, arguing falsely that he had paid me this amount of €38,750;
5. In November 2018, Mr. RUMSEY summoned me on the merits before the Draguignan Court. Not having sufficient resources at the time to retain representation, which, according to French Civil Law is compulsory, I was still looking for a lawyer who would agree to suspend his fees when the court ruled in April 2019 in favor of Mr. RUMSEY, in my absence and without having ever informed me of the date of the hearing;
6. In June 2019, having received sufficient funds, I took the case to the Aix-en-Provence Court of Appeal after securing the services of an attorney, also compulsory before that court;

7. In July 2019 I sent to my lawyer new evidence which unambiguously proved the fraud committed by Mr. RUMSEY with the help of his accomplice Mr. HOWARD, who happened to be my employer at the time;
8. In November 2022 the Court of Appeal ruled in favor of Mr. RUMSEY, ignoring the evidence that I had provided, which nevertheless revealed undeniably the fraud of which Mr. RUMSEY had been guilty with the complicity of Mr. HOWARD;
9. The new elements do not seem to have been taken into account by the Court, whose judgment does not mention anywhere that Mr. HOWARD was my employer and as such undoubtedly owed me my wages;
10. The Court of Appeal sentenced me to pay Mr. RUMSEY the amount of €38,250 [sic] together with accrued interest amounting to €72,231.96 and miscellaneous costs bringing the total to €116,963.71, which is equivalent to about \$124,000.00;
11. I then decided to lodge an appeal in cassation but, contrary to his oral commitments and despite my numerous letters (seven in total) and telephone calls (three in total), my attorney neglected to meet the legal deadlines for the appeal, which consequently could not be formed;
12. I then resolved to request a review of the Court of Appeal's decision, but Mr. RUMSEY had my bank accounts seized and left only the non-seizable balance of €598.54, which is not enough to pay for my mere sustenance, let alone have myself represented by the compulsory attorney or even bring proceedings before the State or Federal Courts of the domiciles of Mr. RUMSEY and Mr. HOWARD in the United States.

Consequently, I wish to lodge a criminal complaint against Mr. RUMSEY and Mr. HOWARD for aggravated fraud with the aim of appropriating my property, since Mr. RUMSEY never paid me the amount he claims from me, contrary to his misleading statements, but took advantage of the coincidental payment of an equivalent amount of

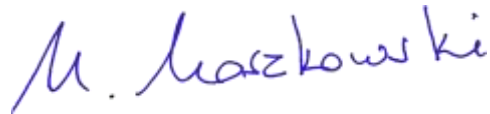
\$50,000 which was made by my employer Mr. HOWARD³ , with respect to the wages he owed me in accordance with American law and the formal commitments he had given the Federal Government.

I declare that I have undeniable proofs to support my statements, whereas Mr. RUMSEY never produced any proof that he had paid me the amount which he claims from me, nor had he ever communicated with me about the establishment of the purported loan, nor about any other matter.

I attached the evidence to this letter.

Respectfully.

Marc Moszkowski



³ The judgment only refers to Mr. HOWARD as to "*another associate*" of Mr. RUMSEY's, whereas Mr. HOWARD was my employer, who as such owed me my wages without any ambiguity whatsoever.

THREE PIECES OF EVIDENCE SHOWING THAT THE LOAN SCHEME NEVER GOT BEYOND THE SCHEME STAGE AND THAT NO PAYMENT WAS EVER MADE BY MR. DAVID RUMSEY:

1. The company's funds were more than sufficient to allow the payment of Marc Moszkowski's salaries after March 2013, the date of the last salary;
2. Mr. Rustin Howard had in any case formally and officially guaranteed the payment of these salaries out of his own funds;
3. Payment of the amount of \$50,000 was made by an officer of Deepgulf, Inc. Mr. Rustin Howard, not by Mr. Rumsey.

TYPE OF DOCUMENT	FILE	REMARKS
1. Summary of payments made to DeepGulf, Inc. by French company GEOCEAN for the personal consultancy activities of Marc Moszkowski, in Singapore, Benin, China, and Malaysia	PAYMENTS FROM GEOCEAN TO DEEPGULF FOR THE ACTIVITIES OF MARC MOSZKOWSKI	\$95,500 was paid to DeepGulf, Inc. on behalf of Marc Moszkowski after DeepGulf, Inc. ceased payment of Marc Moszkowski's salaries
2. Commitment by Mr. Rustin Howard to the US Federal Government to guarantee the salaries of Marc Moszkowski out of its own funds and property:	RUSTIN HOWARD ATTESTATION	This attestation was kept secret from Marc Moszkowski until mid-2018
3. Transfer order dated June 4, 2013, signed by Mr. Rustin Howard, from his investment fund Whitesands , LLC	WHITESANDS BANK TRANSFER	It was Mr. Rustin Howard who made the transfer from his investment fund and who signed it

SEE PIECES OF EVIDENCE BELOW

GEOCEAN PAYMENTS TO DEEPGULF ON BEHALF OF MOSZKOWSKI

Geocean		Grand total:	\$	125,500.00	\$	4,986.20	\$	130,486.20
Payee	Date	Type	Consultancy fees		Expenses		Invoice #	
DeepGulf	8/4/10	Services	\$	26,000.00				1
DeepGulf	8/18/10	Expenses			\$	3,426.00		2
DeepGulf	5/23/12	Services	\$	4,000.00				3
DeepGulf	5/23/12	Expenses			\$	496.73		4
DeepGulf	3/28/13	Services	\$	4,000.00				5
DeepGulf	3/28/13	Expenses			\$	967.47		6
DeepGulf	7/30/13	Services	\$	10,000.00				7
DeepGulf	8/7/13	Services	\$	37,500.00				8
DeepGulf	9/9/13	Services	\$	18,750.00				9
DeepGulf	1/6/14	Services	\$	18,750.00				10
DeepGulf	3/6/14	Services	\$	2,000.00				11
DeepGulf	12/3/14	Services	\$	4,500.00				12
DeepGulf	12/3/14	Expenses			\$	96.00		13
After March 2013			\$	95,500.00				

LAST SALARY PAID TO MARC MOSZKOWSKI: March 2013

Attestation

I, Rus Howard, attest to the following:

1. I am a U.S. Citizen;
2. My company, DeepGulf, Inc., is a startup company with plenty of business to pay the prevailing wage salary of \$120,000 in support of H-1B authorized employment for Mr. Marc Moszkowski;
3. In the event the company does not meet financial expectations, I will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage. Please see the attached personal financial paperwork.

Signature: _____

Date: _____

A customer or team member, with the customer present, completes this form when requesting to send a wire. Outgoing wires can only be sent for Wells Fargo customers. Retain the original copy and provide a copy to the customer ensuring you give the customer the Agreement for Outgoing Wire Transfer Request (page 2 when form is accessed on-line & preprinted on the back of printed forms). Note: Wells Fargo Wire Transfer Services will route wires based on correspondent banking relationships. See back (page 2) for explanations of the Mexican CLABE account, the SWIFT BIC, the International Routing Code (IRC) and the International Bank Account Number (IBAN). ***Required information is noted with an asterisk.**

*Today's Date
06/04/2013

*Send Date (If next day submit wire after 4:30 CT. Store must hold if other than today or next day date)
06/04/2013

1. Originator's Information

*Customer's Name
Whitesands, LLC *Phone Number
(850) 470-9383

*Customer's Physical Address, City, State, Zip Code

17 Palafox St Suite 370 Pensacola, FL 32502

*Transfer from Wells Fargo Account No. (Must be checking, savings, market rate, wholesale checking account or 10-digit command account)

2000035255255

*U.S. Dollar Wire Amount

50000.00

International Wire only: When sending in foreign currency, please ensure the beneficiary's account accepts the designated currency.

Funds to be sent in foreign currency

Foreign Currency Type/Name (SVT/SVP will default to FX unless specified otherwise)

*Currency Code (if known)

*Foreign Currency Amount

☐ Yes ☒ No

2. Beneficiary/Recipient Information (This is the ultimate recipient of the wire transfer funds.)

*Beneficiary/Recipient Name

Arthur Moszkowski

*Beneficiary Account Number, Mexican CLABE # or the International Bank Account Number (IBAN) where applicable:

FR7618106008108096420605022

Beneficiary's Physical Address, City, State, Zip Code (A physical address is required for foreign wires.)

unknown

Information for the Beneficiary (invoice number, purchase order number, etc.)

Beneficiary Phone Number

3. Beneficiary Bank Information (This is the financial institution where the beneficiary maintains their account.)

*Beneficiary Bank RTN or SWIFT Bank Identifier Code (SWIFT BIC)

AGRIFRPP881

*International Routing Code (IRC)

*Beneficiary Bank Name

Caisse Regionale de Credit Agricole des Savoie

Beneficiary Bank Address, City, State, Zip, Country (optional information)

unknown

Information for Beneficiary Bank (wires to Mexican banks require the CLABE account number in the Beneficiary instructions to ensure correct payment.)

4. Intermediary Bank Information (This is a financial institution that the wire must pass through before reaching the final beneficiary bank.) This section is optional and not required for all wires. Please note that routing may be altered depending on Wells Fargo Bank's correspondent relationships.

Optional: *Intermediary Beneficiary Bank RTN or SWIFT BIC

International Routing Code (IRC)

*Intermediary Bank Name

*Intermediary Bank Account No.

Intermediary Bank Address City, State, Zip, Country (optional information)

Information for Intermediary Bank

5. Wire Fee & Customer Signature (Additional fees from intermediary and beneficiary banks may be charged to international transactions - see Fees Section on page 2 of this form.)

Wire Fee Amount (the Transfer From account will be charged the fee.) The region that houses the account being debited determines the fee amount. Use the fee information available through Teamworks and/or Banker's Guide. Do not use SVT/SVP for fee when account is not in your region. Additional fees may apply (see page 2 of this form). Contact WBR Store Support for questions regarding Command Fees.

*AU where the Originator's account is located

66092

*Fee Amount

\$ 45.00

My signature here indicates agreement to all of the information on this Outgoing Wire Transfer Request and to the terms and conditions on the second page of this request. Wells Fargo is authorized to rely on the information on this Request in making the requested funds transfer.

***X**

*Date

06/04/2013

6. Wells Fargo Use Only - Wells Fargo Approval - Following MUST be completed for ALL outgoing wires.

International Wire Foreign Currency Information

Rate

Contract No. (required when \$100,000 or more U.S. \$)

FX Trader Contact

*Wire Transaction/FAS Number

FW-0066092-155-722232

*Name on ID used by customer

Rustin R Howard

Method used to verify business acct. transaction authority

Sig Card

*1st ID type, number, issued by State/Country & Expiration Date

FL DL h630-736-56-378-0 Exp 10/18/2017

*2nd ID type, number, issued by State/Country & Expiration Date

PIN

*Initiated by and AU#

X

*First Approval

X

Second Approval, if applicable

X

7. Wires in Process (WIP)

*When Customer's account is not debited, the WIP Account is funded by

☐ Paid by Check ☐ Paid Cash ☐ Paid through account other than checking, savings, MRA, TRS or Hogan. Reference Acct #:

Tax ID Type - Type & No. are required when customer's account is not debited.

Tax ID No. (if non-citizen provide Alien ID #, Passport # & Country)

☐ Social Security ☐ TIN ☐ Non-U.S. Citizen without TIN ☐ Employer ID